

Smt. Sadhana v. Rajesh Babu Katiyar, Executive Engineer

High Court of Judicature at Allahabad · Single Judge · 1 November 2019 · Contempt Application (Civil) No. 7197 of 2019 · **Contempt disposed; two weeks more to comply with Clauses 4.2–4.4.**

HEADNOTE

On civil contempt alleging non-compliance of a 29 May 2019 writ directing the Executive Engineer to consider a new tailoring-shop connection under Clauses 4.2 to 4.4 of the U.P. Electricity Supply Code, 2005, the High Court found a prima facie case of contempt but granted two further weeks to comply and disposed of the application with liberty to move afresh if the order remained unobeyed. Entitlement to supply was not decided.

FACTUAL SUMMARY

Smt. Sadhana applied to Dakshinanchal Vidyut Vitran Nigam Ltd. for a new connection for her tailoring shop. She completed the formalities and deposited the estimated amount and an indemnity bond, but the application was not processed. On 29 May 2019 the High Court in Writ-C No. 18947 of 2019 directed the Executive Engineer to consider the grant under Clauses 4.2 to 4.4 of the Supply Code, 2005, preferably within a month. She then filed this civil contempt alleging wilful non-compliance.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

contempt of direction to consider new connection

HOLDING

Where a writ court has already directed the Executive Engineer to consider and decide a new-connection application in accordance with Clauses 4.2 to 4.4 of the U.P. Electricity Supply Code, 2005, a later civil contempt application may be disposed of on a prima facie finding of non-compliance by granting a short further time to obey that consideration order, with liberty to move afresh if it remains uncomplied. The Court does not itself grant or refuse the connection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A NEW CONNECTION WAS DUE UNDER CLAUSES 4.2 TO 4.4

The Court only enforced the earlier consider-in-accordance-with-law direction; it did not decide entitlement to supply. ¶ 1